

or immediately before her departure from, a port or aerodrome.

6.—(1) Any person who contravenes the provisions of this Act shall be liable to a penalty not exceeding in the case of a first offence five pounds and in the case of a second or subsequent offence twenty pounds.

Penalties
and enforce-
ment of
Act.

(2) Sections thirteen and fourteen of the Shops Act, 1912 (which relate to the enforcement of that Act), shall apply with respect to the provisions of this Act as they apply with respect to the provisions of that Act.

7. In this Act the expressions "local authority," "shop," and "shop assistant" have respectively the same meanings as in the Shops Act, 1912, the expression "butchers' meat" means beef, mutton, veal, lamb or pork (including livers, heads, feet, hearts, lights, kidneys or sweetbreads), whether fresh, chilled, frozen or salted, and includes Kosher meat, and the expression "Kosher meat" means butchers' meat killed and prepared by the Jewish ritual method.

Interpreta-
tion.

8.—(1) This Act may be cited as the Retail Meat Dealers' Shops (Sunday Closing) Act, 1936, and shall come into operation on the first day of January, nineteen hundred and thirty-seven.

Short title,
commence-
ment and
extent.

(2) This Act shall not extend to Scotland or Northern Ireland.

CHAPTER 31.

An Act to consolidate the enactments relating to non-contributory Old Age Pensions.

[14th July 1936.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) Every person in whose case the conditions laid down by this Act for the receipt of an old age pension (in this Act referred to as statutory conditions) are

Right to
receive old
age pension.

fulfilled, shall be entitled to receive such a pension under this Act so long as those conditions continue to be fulfilled, and so long as he is not disqualified under this Act for the receipt of the pension.

(2) An old age pension under this Act shall be at the rate set forth in the First Schedule to this Act.

(3) The sums required for the payment of old age pensions under this Act shall be paid out of moneys provided by Parliament.

(4) The receipt of an old age pension under this Act shall not deprive the pensioner of any franchise, right, or privilege, or subject him to any disability.

Statutory
conditions
for receipt
of old age
pension.

2.—(1) Subject to the provisions of this Act, the statutory conditions for the receipt of an old age pension by any person are—

- (a) the person shall have attained the age of seventy, or, in the case of a blind person, the age of fifty;
- (b) the person shall satisfy the pension authorities that for at least ten years up to the date of the receipt of any sum on account of a pension he has been a British subject, and that he has been resident in the United Kingdom, if he is a natural born British subject, for an aggregate period of not less than twelve years since attaining the age of fifty years, or, in the case of a blind person, thirty years, and, if he is not a natural born British subject, for an aggregate period of twenty years;
- (c) the person shall satisfy the pension authorities that his yearly means as calculated in accordance with the provisions of the First Schedule to this Act, after deducting therefrom such part, if any, thereof, but not exceeding in any case thirty-nine pounds, as is derived from any source other than earnings, do not exceed forty-nine pounds, seventeen shillings and sixpence.

(2) For the purpose of computing residence in the United Kingdom under paragraph (b) of subsection (1) of this section—

- (a) any periods spent abroad in any service under the Crown, the remuneration for which is paid out of moneys provided by Parliament, or as

the wife or servant of a person in any such service so remunerated;

(b) any periods spent in the Channel Islands or the Isle of Man by a person born in the United Kingdom;

(c) any periods spent abroad by any person during which that person has maintained or assisted in maintaining any dependant in the United Kingdom;

(d) any periods of absence spent in service on board a vessel registered in the United Kingdom by a person who before his absence on that service was living in the United Kingdom;

(e) any periods of temporary absence not exceeding three months in duration at any one time; and

(f) any periods spent in any part of Ireland before the establishment of the Irish Free State;

shall be counted as periods of residence in the United Kingdom.

(3) The condition as to nationality imposed by paragraph (b) of subsection (1) of this section shall not be required to be fulfilled in the case of a woman who satisfies the pension authorities that she would, but for her marriage with an alien, have fulfilled this condition.

(4) For the purposes of this Act, "blind person" means a person so blind as to be unable to perform any work for which eyesight is essential.

3.—(1) Where during any period a person—

(a) is an inmate of any workhouse or other poor law institution; or

(b) is detained in prison in pursuance of an order made on his conviction for any offence and directing him to be imprisoned without the option of a fine, or to suffer any greater punishment; or

(c) is being maintained in any place as a rate-aided person of unsound mind, or as a criminal lunatic, or is detained in any mental hospital within the meaning of the Lunacy and Mental Treatment Acts, 1890 to 1930,

Disqualifi-
cations for
old age
pension.

then, subject to the provisions of this section, he shall be disqualified for receiving any sum accruing during that period on account of any pension which would otherwise be payable to him, and if before the commencement of that period any sum has accrued on account of a pension payable to him, that sum shall not be paid to him during the continuance of the said period.

(2) For the purposes of this section, a person who has become an inmate of any workhouse or other poor law institution for the purpose of obtaining medical or surgical treatment shall not be treated as being such an inmate so long as he continues to require such treatment.

61 & 62 Vict.
c. 60. (3) Where a person of sixty years of age or upwards having been convicted before any court is liable to have a detention order made against him under the Inebriates Act, 1898, and is not necessarily, by virtue of the provisions of this Act, disqualified from receiving or continuing to receive an old age pension under this Act, the court may, if they think fit, order that the person convicted be so disqualified for such period, not exceeding ten years, as the court direct.

Prohibition
against
double
pensions.
26 Geo. 5. &
1 Edw. 8.
c. 33.

4.—(1) Not more than one old age pension, whether under this Act or under the Widows', Orphans' and Old Age Contributory Pensions Act, 1936, shall be payable to any one person :

Provided that the right to a pension under the last-mentioned Act shall not affect any right to, or to the continuance of, a pension payable under this Act, or any Act repealed by this Act, to a blind person who has not attained the age of seventy.

(2) If a person in receipt of an old age pension under this Act is granted an old age pension under the corresponding Acts relating to old age pensions in Northern Ireland, he shall, as from the date on which that pension commences to accrue, be disqualified for continuing to receive the pension under this Act.

Payment of
old age pen-
sions.

5.—(1) An old age pension under this Act, subject to any directions of the Treasury in special cases, shall be paid weekly in advance in such manner and subject to such conditions as to identification or otherwise as the Treasury direct.

(2) A sum shall not be paid on account of an old age pension—

(a) to any person unless that person is in Great Britain; or

(b) if payment of the sum is not obtained within three months after the date on which it has become payable :

Provided that, where a person in receipt of an old age pension under this Act becomes resident in Northern Ireland, the pension shall continue to be payable for a period of twelve weeks from the Friday next following the date on which the pensioner ceased to be resident in Great Britain, or, if that date was a Friday, from that date, but no payment shall be made on account of the pension until a period of five weeks has elapsed from the date aforesaid.

Payments on account of any such pension shall be made by the appropriate department of the Government of Northern Ireland as agents for and on behalf of the Government of the United Kingdom.

6.—(1) Where a pension is first allowed the pension shall commence to accrue, and where, by virtue of a decision on any question which has been raised, a pension becomes payable at an increased rate, the pension shall become payable at the increased rate on the first Friday after the date on which the claim for the pension is received by the pension officer or on which the notice of the question is received by the pension officer, as the case may be, or on the first Friday after the date on which the claimant or the pensioner first becomes entitled to the pension or on which the pension first becomes payable at the increased rate, whichever is the later, or, if the later of those two dates is a Friday, on that Friday.

*Date of
commence-
ment of
pension or
of increased
rate of pen-
sion.*

(2) Where any general public holiday falls on a Friday, the Treasury may, if they think fit, direct that sums payable by way of old age pensions on that Friday shall be paid on some other day, whether earlier or later.

7.—(1) Every assignment of or charge on and every agreement to assign or charge an old age pension under this Act shall be void, and, on the bankruptcy of a person entitled to an old age pension, the pension shall not pass to any trustee or other person acting on behalf of the creditors.

*Old age pen-
sion to be
inalienable,
&c.*

32 & 33 Vict.
c. 62.

(2) Any sums received by any person by way of an old age pension shall not be included in calculating his means for the purpose of section five of the Debtors Act, 1869.

Determina-
tion of
claims and
questions.

8.—(1) All claims for old age pensions under this Act and all questions whether the statutory conditions are fulfilled in the case of any person claiming such a pension, or whether those conditions continue to be fulfilled in the case of a person in receipt of such a pension, or whether a person is disqualified for receiving or continuing to receive a pension, shall be considered and determined as follows:—

- (a) Any such claim or question shall stand referred to the local pension committee, and the committee shall (except in the case of a question which has been originated by the pension officer and on which the committee have already received his report), before considering the claim or question, refer it for inquiry and report to the pension officer :
- (b) The pension officer shall inquire into and report upon any claim or question so referred to him, and the local pension committee shall, on the receipt of the report of the pension officer and after obtaining from him or from any other source if necessary any further information as to the claim or question, consider the case and give their decision upon the claim or question :
- (c) The pension officer, and any person aggrieved, may appeal to the central pension authority against a decision of the local pension committee allowing or refusing a claim for pension or determining any question referred to them within the time and in the manner prescribed by regulations under this Act, and any claim or question in respect of which an appeal is so brought shall stand referred to the central pension authority, and shall be considered and determined by them :
- (d) If any person is aggrieved by the refusal or neglect of a local pension committee to consider a claim for a pension, or to determine any question

referred to them, that person may apply in the prescribed manner to the central pension authority, and that authority may, if they consider that the local pension committee have refused or neglected to consider and determine the claim or question within a reasonable time, themselves consider and determine the claim or question in the same manner as on an appeal from the decision of the local pension committee.

A pension officer, if dissatisfied with any refusal or neglect of a local pension committee to consider a claim or determine a question, has, under paragraph (d) of this subsection, a right to apply to the central pension authority as a person aggrieved within the meaning of that provision.

(2) The decision of the local pension committee on any claim or question which is not referred to the central pension authority, and the decision of the central pension authority on any claim or question which is so referred to them, shall be final and conclusive.

9.—(1) A question may be raised at any time—

(a) whether at any time or during any period a person has been in receipt of an old age pension when the statutory conditions were not fulfilled, or when he was disqualified for receiving the pension; and

Further provisions with respect to the raising and determination of questions.

(b) whether a person has been at any time or during any period in receipt of a pension at a certain rate when his means exceeded the amount which justified the payment of a pension at that rate, and, if so, at what rate the pension, if any, should have been paid; and

(c) whether a person who is in receipt of a pension at a certain rate is, having regard to his means, entitled to a pension at a higher or a lower rate, and, if so, at what rate the pension, if any, should be paid;

and an application may be made at any time to alter or revoke a provisional allowance of a claim for a pension, and the provisions of the last preceding section shall

apply to any such question or application as they apply to the questions mentioned in that section.

(2) Any such question may be raised notwithstanding that the decision of the question involves a decision as to the correctness of a former decision of the local pension committee or central pension authority, as the case may be, but, where by a later decision a former decision is reversed, a person who has received any sums on account of an old age pension in accordance with the former decision shall, notwithstanding anything in subsection (2) of section eleven of this Act, in the absence of any fraud on his part, be entitled to retain any sum so received up to the date of the later decision, which he would have been entitled to retain but for the reversal of the former decision.

(3) Where a question is raised as to the disqualification of a person to receive an old age pension and it is alleged that the disqualification has arisen since the person has been in receipt of the pension, and that the disqualification is continuing at the time the question is raised, or, if it has ceased, has ceased less than three weeks before that time, the payment of the pension shall be discontinued, and no sum shall be paid to the pensioner on account of the pension after the date on which the question is raised :

Provided that, if the question is decided in favour of the pensioner, he shall be entitled to receive all sums which would have been payable to him if the question had not been raised.

(4) If the decision on any question involves the discontinuance of an old age pension, or the reduction of the rate at which the pension is paid, or if, in a case where the payment of the pension has been discontinued on the raising of the question, the question is not decided in favour of the pensioner, the person in respect of whose pension the decision is given shall not be entitled to receive a pension or to receive a pension at a rate higher than that determined by the committee or authority, as the case may be, notwithstanding any change of circumstances, unless he makes a fresh claim for the purpose and the claim is allowed, or in a case where he alleges that he is entitled to receive a pension at a higher rate, raises a question for the purpose and the pension is allowed at a higher rate.

10.—(1) The local pension committee shall be a committee appointed for every borough and urban district, having a population according to the last published census for the time being of twenty thousand or over, and for every county (excluding the area of any such borough or district), by the council of the borough, district, or county. Local pension committee, central pension authority, and pension officers.

The persons appointed to be members of a local pension committee need not be members of the council by which they are appointed.

(2) A local pension committee may appoint such and so many sub-committees, consisting either wholly or partly of the members of the committee as the committee think fit, and a local pension committee may delegate, either absolutely or under such conditions as they think fit, to any such sub-committee any powers and duties of the local pension committee under this Act.

(3) The central pension authority shall be the Minister of Health, and the Minister may act through such committee, persons, or person appointed by him as he thinks fit.

(4) Pension officers shall be appointed by the Treasury, and the Treasury may appoint such number of those officers as they think fit to act for such areas as they direct.

(5) Any reference in this Act to pension authorities shall be construed as a reference to the pension officer, the local pension committee, and the central pension authority, or to any one of them, as the case requires.

11.—(1) If for the purpose of obtaining or continuing an old age pension under this Act, either for himself or for any other person, or for the purpose of obtaining or continuing an old age pension under this Act for himself or for any other person at a higher rate than that appropriate to the case, any person knowingly makes any false statement or false representation, he shall be liable on summary conviction to imprisonment for a term not exceeding six months, with hard labour. Penalty for false statements, &c., and repayment where pensioner is found not to have been entitled to pension.

(2) If it is found at any time that a person has been in receipt of an old age pension under this Act while the

statutory conditions were not fulfilled in his case or while he was disqualified for receiving the pension, he or, in the case of his death, his personal representative, shall be liable to repay to the Treasury any sums paid to him in respect of the pension while the statutory conditions were not fulfilled or while he was disqualified for receiving the pension, and the amount of those sums may be recovered as a debt due to the Crown.

This subsection applies with the necessary modifications to cases where an old age pension is received at a higher rate than that appropriate to the case as it applies to cases where a person has been in receipt of an old age pension while the statutory conditions were not fulfilled.

(3) For the purposes of the last preceding subsection, any decision of the local pension committee under section eight of this Act on any question which is not referred to the central pension authority and the decision of the central pension authority on any question which is referred to them under that section shall be conclusive proof of any matters decided by the committee or the authority.

A copy of any decision of the local pension committee or central pension authority, if authenticated in manner provided by regulations to be made for the purpose under this Act, shall be received in evidence.

(4) Where any person who is in receipt of an old age pension is liable to repay to the Treasury any sums under this section in consequence of the finding of a local pension committee, or of the central pension authority in the case of a question referred to them, the Treasury shall be entitled, without prejudice to their other powers under this section, to direct the deduction of those sums from any sums to which that person becomes entitled on account of an old age pension, in manner to be provided by regulations to be made for the purpose under this Act :

Provided that, in the case of a personal representative, the deduction shall only be made from any sums to which that person becomes entitled as a personal representative.

Regulations
and ex-
penses.

12.—(1) The Treasury, in conjunction with the Minister of Health, and with the Postmaster-General, so far as relates to the Post Office, may make regulations for any purpose for which regulations may be made under

this Act and generally for carrying this Act into effect, and in particular—

- (a) for prescribing the evidence to be required as to the fulfilment of statutory conditions; and
- (b) for prescribing the manner in which claims to pensions may be made, and the procedure to be followed on the consideration and determination of claims and questions to be considered and determined by pension officers and local pension committees or by the central pension authority, and the mode in which any question may be raised as to the continuance, in the case of a pensioner, of the fulfilment of the statutory conditions, and as to the disqualification of a pensioner; and
- (c) for enabling a local pension committee to appoint a person to exercise, on behalf of any claimant or pensioner who is by reason of any mental or other incapacity unable to act, any right to which that claimant or pensioner may be entitled under this Act, and to authorise any person so appointed to receive on behalf and for the benefit of the claimant or pensioner any sums payable by way of old age pension; and
- (d) as to the number, quorum, term of office, and proceedings generally of the local pension committee and the use by the committee, with or without payment, of any offices of a local authority, and the provision to be made for the immediate payment of any expenses of the committee which are ultimately to be paid by the Treasury.

(2) The regulations shall provide for enabling claimants for pensions to make their claims and obtain information as respects old age pensions under this Act through the Post Office, and for provisionally allowing claims to pensions before the date on which the claimant will become actually entitled to the pension, and for notice being given by registrars of births and deaths to the pension officers or local pension committees of every death of a person over seventy registered by them, in such manner and subject to such conditions as may be laid down by the regulations, and for making the procedure

for considering and determining any claim for a pension or question with respect to an old age pension under this Act as simple as possible.

(3) Every regulation under this Act shall be laid before each House of Parliament forthwith, and, if an address is presented to His Majesty by either House of Parliament within the next subsequent twenty-one days on which that House has sat next after any such regulation is laid before it, praying that the regulation may be annulled, His Majesty in Council may annul the regulation, and it shall thenceforth be void, but without prejudice to the validity of anything previously done thereunder.

(4) Any expenses incurred by the Treasury in carrying this Act into effect, and the expenses of the Minister of Health and the local pension committees under this Act up to an amount approved by the Treasury, shall be defrayed out of moneys provided by Parliament.

Application
to Scotland
and Scilly
Isles.

13.—(1) In the application of this Act to Scotland—

- (a) the Department of Health for Scotland shall be substituted for the Minister of Health;
- (b) the Lunacy (Scotland) Acts, 1857 to 1919, shall be substituted for the Lunacy and Mental Treatment Acts, 1890 to 1930;
- (c) the expression “workhouse or other poor law institution” means poorhouse, the expression “mental hospital” means asylum, and the expression “rate-aided person of unsound mind” means pauper lunatic;
- (d) the expression “borough” means burgh, and references to urban districts and to the population limit for boroughs and urban districts shall not apply.

(2) For the purposes of this Act, a person shall be deemed according to the law in Scotland as well as according to the law in England to have attained the age of seventy on the commencement of the day previous to the seventieth anniversary of the day of his birth, and similarly with respect to other ages.

(3) In the application of this Act to the Isles of Scilly, those Isles shall be deemed to be a county, and the council of those Isles the council of a county.

14. The enactments set out in the Second Schedule to this Act are hereby repealed to the extent specified in the third column of that Schedule: Repeal.

Provided that without prejudice to the provisions of section thirty-eight of the Interpretation Act, 1889— 52 & 53 Vict.
c. 63.

- (a) nothing in this repeal shall affect any regulation made, notice or decision given, or thing done under any enactment repealed by this Act, and every such regulation, notice or decision shall continue in force and shall, so far as it could have been made or given under this Act, have effect as if made or given under the corresponding enactment of this Act;
- (b) any document referring to any enactment repealed by this Act shall be construed as referring to the corresponding enactment of this Act;
- (c) any person appointed to any office, committee or sub-committee under or by virtue of any enactment repealed by this Act shall be deemed to have been appointed to that office, committee or sub-committee under or by virtue of this Act;
- (d) references in this Act to persons entitled to or in receipt of old age pensions shall, so far as necessary for the purpose of preserving any accruing right, be construed as including references to persons so entitled or in receipt of pensions under the enactments repealed by this Act.

15. Where any person was under any Act repealed by this Act in receipt of a pension on the first day of December, nineteen hundred and twenty-one, the pension shall continue payable to him, so long as he continues to be entitled thereto, whether he resides in Northern Ireland or in any other part of the United Kingdom, but the liability for the pension shall, in respect of any period during which he is resident in Northern Ireland, rest with the Government of Northern Ireland, and shall, in respect of any period during which he is resident in any other Saving for
certain
pensions
payable in
Northern
Ireland.

part of the United Kingdom, rest with the Government of the United Kingdom.

Commence-
ment,
extent and
short title.

16.—(1) This Act shall come into force on the first day of January, nineteen hundred and thirty-seven.

(2) Save as otherwise expressly provided, this Act shall not extend to Northern Ireland.

(3) This Act may be cited as the Old Age Pensions Act, 1936.

SCHEDULES.

FIRST SCHEDULE.

Sections 1
(2), 2 (1) (c).

RATE OF PENSION AND CALCULATION OF MEANS.

Means of Claimant or Pensioner.	Rate of Pension per Week.
Where the yearly means of the claimant or pensioner, calculated in accordance with the provisions of this Act,—	
do not exceed £26 5s. - - - - -	10s.
exceed £26 5s., but do not exceed £31 10s. -	8s.
„ £31 10s. „ „ £36 15s. -	6s.
„ £36 15s. „ „ £42 - -	4s.
„ £42 „ „ £47 5s. -	2s.
„ £47 5s. „ „ £49 17s. 6d. -	1s.
„ £49 17s. 6d. - - - - -	No pension.

(1) In calculating the means of a person, account shall be taken of—

(a) the yearly value of any property belonging to that person (not being property personally used or enjoyed by him) which is invested, or is otherwise put to profitable use by him, or which, though capable of investment or profitable use, is not so invested or put to profitable use by him :

Provided that—

1ST SON.
—cont.

- (i) the first twenty-five pounds of the capital value of the said property shall be excluded; and
 - (ii) the yearly value of the next three hundred and seventy-five pounds of the capital value of the said property shall be taken to be one-twentieth part of the capital value; and
 - (iii) the yearly value of so much of the capital value of the said property as exceeds the sum of four hundred pounds shall be taken to be one-tenth part of the capital value;
- (b) the income which that person may reasonably expect to receive during the succeeding year in cash, excluding any sums receivable on account of an old age pension under this Act, and excluding any sums arising from the investment or profitable use of property (not being property personally used or enjoyed by him), that income, in the absence of other means for ascertaining the income, being taken to be the income actually received during the preceding year :

Provided that no account shall be taken of any amounts received during a period of not more than three months in any year by a person or by the husband or wife of a person, as the case may be, under a medical certificate as sickness benefit from a friendly society or trade union, or under the National Health Insurance Act, 1936;

26 Geo. 5 &
1 Edw. 8.
c. 32.

- (c) the yearly value of any advantage accruing to that person from the use or enjoyment of any property belonging to him which is personally used or enjoyed by him, except furniture and personal effects; and
- (d) the yearly value of any benefit or privilege enjoyed by that person :

Provided that, where under paragraph (a) of the foregoing provisions the yearly value of any property is taken to be one-twentieth or one-tenth of the capital value thereof, no account shall be taken under any other of those provisions of any appropriation of that property for the purpose of current expenditure.

(2) In calculating the means of a person being one of a married couple living together in the same house, the means shall be taken to be half the total means of the couple, and where either of the couple or the couple jointly is or are entitled to any property, each of them shall be deemed to be entitled to one-half of that property.

1ST SCH.
—cont.

(3) Where a husband is separated from his wife, any sum paid by him to her under a separation order shall be deducted in calculating his means.

(4) If it appears that any person has directly or indirectly deprived himself of any income or property in order to qualify himself for the receipt of an old age pension, or for the receipt of an old age pension at a higher rate than that to which he would otherwise be entitled under this Act, that income or the yearly value of that property shall, for the purposes of this Schedule, be taken to be part of the means of that person.

Section 14.

SECOND SCHEDULE.

ENACTMENTS REPEALED.

Session and Chapter, or Year and Number of Order.	Short Title.	Extent of Repeal.
8 Edw. 7. c. 40	The Old Age Pensions Act, 1908.	The whole Act.
1 & 2 Geo. 5. c. 16.	The Old Age Pensions Act, 1911.	The whole Act.
9 & 10 Geo. 5. c. 102.	The Old Age Pensions Act, 1919.	The whole Act.
10 & 11 Geo. 5. c. 49.	The Blind Persons Act, 1920.	Section one.
S.R. & O., 1922, No. 467.	The Government of Ireland (Modification of Old Age Pensions Acts) Order, 1922.	The whole Order.
S.R. & O., 1923, No. 405.	The Irish Free State (Consequential Adaptation of Enactments) Order, 1923.	Article nine.
14 & 15 Geo. 5. c. 33.	The Old Age Pensions Act, 1924.	The whole Act.